

From : Matt Reardon <matt@mattreardon.com>

To : "Samantha Weathersbee" <SWeathersbee@lafayettecoms.com>

Subject : Re: Judge Whitwell's Denial of Pauper's Oath in Lafayette County Cause No. 2016-422

Date : Wed, 09 Feb 2022 10:43:26 -0600

Attachments : Motion- 2-8-22 in Re Matthew Oliver Reardon- filed.pdf

Attached is a newly filed motion in the Supreme Court

All My Best,

Matt Reardon

---- On Tue, 08 Feb 2022 14:05:58 -0600 Matt Reardon<matt@mattreardon.com> wrote ---

So you mean to tell me you can state a reason for denial such as that but you won't provide the reference? I'm sorry, but that is sloppy, distasteful, and uncalled for with it coming from a Staff Attorney. If you can state a reason for denial, it comes as an expectation to provide a reference. You wouldn't make an argument before any court without referencing to it. Stop hardballing me Samantha. I responded with my argument AND I properly referenced it which is that Rule 3 states plainly and clearly ANY MATTER IN ANY COURT. It doesn't provide any exceptions in its text. Now you want to claim that IFP is only something that would be granted in parental termination yet you won't provide a reference. Once again, I'm not asking for your help or for your advice. I'm asking for you to provide the reference to your reasoning. That should so easily fall within the basic scope and functions of your job and not one that should ever be considered conflicting or "giving legal advice"

All My Best,

Matt Reardon

---- On Tue, 08 Feb 2022 13:37:05 -0600

SWeathersbee@lafayettecoms.com<SWeathersbee@lafayettecoms.com> wrote ----

Mr. Reardon,

I cannot. I am an officer of the court and work for Judge Whitwell. You are pro se and are held to the same standards as if you were an attorney. I strongly encourage you get legal counsel if you do not know what you are doing or have questions with this matter. That is all I can tell you.

Best,

Samantha D. Weathersbee, Esq.

**Staff Attorney to Judge Robert Q. Whitwell
of the 18th Chancery Court District**

From: Matt Reardon <matt@mattreardon.com>

Sent: Tuesday, February 8, 2022 1:26 PM

To: Samantha Weathersbee

Subject: Re: Judge Whitwell's Denial of Pauper's Oath in Lafayette County Cause No. 2016-422

Samantha,

Can you please provide the specific spelled out rule you referenced to in your email regarding IFP only applying to parental termination and where it can be found?

Between all that has transpired, the way this court has ruled against me based on invalid and untrue claims while condoning the actions of Liz Crowder, the email from Christi McCoy last year proposing termination of rights, and your remark of IFP only applying to parental termination, it would almost certainly give off the impression that termination of my parental rights through one way or another has been the primary sought goal of Liz Crowder, her attorneys, and this court all along. The worst is the continuing Attempt to Accomplish this through exploitation utilizing my child, extorting me in such ways knowing I refuse to back down, and the successful human trafficking of my child through harboring with the complete assistance of this court. Based on how they are legally defined, I am confident I can substantiate these allegations which is the next step I am taking if I don't get relief which should be fully expected. If you were in my shoes and faced the same complete injustices in having a large out of proportion sum of your income held from you for a child you were refused access to, I am about positive you would do the same

All My Best,

Matt Reardon

---- On Mon, 07 Feb 2022 16:48:45 -0600

SWeathersbee@lafayettecoms.com<SWeathersbee@lafayettecoms.com> wrote ----

Mr. Reardon,

That Rule applies to the lower court & Judge Whitwell allowed you to proceed inform a pauperis in his court. You are now asking to proceed inform a pauperis on appeal in the appellate court. That is a different rule for appellate procedure and is not allowed as I previously explained in my prior email.

Best,

Samantha Weathersbee

Staff Attorney to Judge Whitwell

On Feb 7, 2022, at 4:37 PM, Matt Reardon<matt@mattreardon.com> wrote:

Rule 3 (c) of the Mississippi Rules of Civil Procedure, adopted by the Mississippi Supreme Court, states:

Proceeding In Forma Pauperis. A party may proceed in forma pauperis in accordance with sections 11-53-17 and 11-53-19 of the Mississippi Code Annotated.

The court may, however, on the motion of any party, on the motion of the clerk of the court, or on its own initiative, examine the affiant as to the facts and circumstances of his pauperism.

State Statutes:

Title 11. Civil Practice and Procedure

Chapter 53. Costs

Miss. Code Ann. § 11-53-17

Poor persons may sue without security for costs. A citizen may commence any civil action, or answer a rule for security for costs in any court without being required to prepay fees or give security for costs, before or after commencing suit, by taking and subscribing via affidavit.

I'm not sure what rules in Lafayette County chancery court differ from these established rules that state IN ANY COURT, but this is highly prejudicial and has gotten far out of hand! Judge Whitwell should not have had any authority to rule on that affidavit to proceed without prepayment of fees being that it was his ruling which was being appealed, and a petition for writ of mandamus was filed along side which should prohibit the judge from ruling further particularly on a matter such as proceeding without prepayment of fees at that point due to conflict raised and the fact that it would remove any and all fairness and integrity from a proceeding if the judge appealed from could decide such a monumental matter that could affect the appeal filed before the MS Supreme Court .

In fact I'm fairly certain the MS Rules of Judicial Conduct cover this under Canon 2 (avoiding impropriety and appearance of impropriety) and Canon 3 (performing the duties of judicial office impartially and diligently).

To make matters even worse, this combined with what I have just gathered now proves undoubtedly that Chancery Court is picking and choosing when and when not to apply indigent status, applying it in ways that solely benefit the county. The evidence is really beginning to stack up showing that Lafayette County Chancery Court through shockingly unscrupulous tactics is defrauding both the tax payers of Lafayette County as well as myself, the aggrieved party in the matters.

I'll go ahead and file another grievance along with another in forma pauperis affidavit, except this time I'll file it with the MS Supreme Court and ask for an expedited ruling given the particular circumstances

All My Best,

Matt Reardon

----- On Mon, 07 Feb 2022 15:33:17 -0600

SWeathersbee@lafayettecoms.com<SWeathersbee@lafayettecoms.com> wrote

Mr. Reardon,

Ms. Kincaid informed the Court of your visit today regarding the denial of your pauper's oath for your appeal to the Supreme Court. The judge is not permitted to speak with you about this matter, and therefore I am contacting you instead. The rules do not allow for a civil matter to be appealed in forma pauperis, except for a termination of parental rights case. Your case is not a termination of parental rights matter, and that is why Judge Whitwell denied your request. If you need anything further addressed in this matter, you will need to take that up with the appellate court.

Best,

Samantha D. Weathersbee, Esq.
Staff Attorney to Judge Robert Q. Whitwell
of the 18th Chancery Court District
300 N. Lamar Blvd., Suite 211

ORIGINAL

IN THE SUPREME COURT FOR THE STATE OF MISSISSIPPI

Cause Number 2021-TS-01191

Matthew Oliver Reardon Appellant

Vs

Phyllis Crowder Appellee

FILED

FEB 08 2022

OFFICE OF THE CLERK
SUPREME COURT
COURT OF APPEALS

Motion/Affidavit to Proceed in In Forma Pauperis

I, Matthew Oliver Reardon, do solemnly swear that I am a citizen of the State of Mississippi, and that because of my poverty I am not able to pay the costs or give security for the same civil action In Re: Matthew Oliver Reardon which I commenced by notice of appeal to the Mississippi Supreme Court on 10-19-2021, and that to the best of my belief, I am entitled to the redress which I seek by such suit.

Further, it is respectfully requested that this matter receive preferential docketing and an expedited ruling due to matters involving the care of a minor child, the serious grievances sustained, and the irreparable damages already incurred due to the handling of this matter by the court appealed from. As an added addendum to this motion to proceed in forma pauperis, Appellant brings the following four stated grievances as additional meritorious issues needing proper address by this court and raises these questions to this court in seeking proper redress.

- 1) Does a trial judge whose order is appealed maintain authority to rule on and deny an appellant's In Forma Pauperis Affidavit to proceed without prepayment of security costs?
- 2) Would a denial of such IFP Affidavit by the trial judge appealed from constitute impropriety on behalf of the judge by subjecting the appellant to unfair, prejudicial conditions further depriving that individual of equal protections under the rules of the court and the laws of the state?

MOTION

2022

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- 3) Should a notice of appeal and petition for writ of mandamus filed against the trial judge halt all further actions and rulings from the trial judge until such time the appeal and/or writ of mandamus are ruled upon by the appellate court?
- 4) Does a trial Judge have authority to simply deny a sworn IFP Affidavit without holding a determination hearing regarding the individual's indigent status and inability to pay costs?

Rule 3 (c) of the Mississippi Rules of Civil Procedure, adopted by the Mississippi Supreme Court, states:
A party may proceed in forma pauperis in accordance with sections 11-53-17 and 11-53-19 of the Mississippi Code Annotated.

Section 11-53-17 of the MS Code Annotated states:
Poor persons may sue without security for costs. A citizen may commence any civil action, or answer a rule for security for costs in any court without being required to prepay fees or give security for costs, before or after commencing suit, by taking and subscribing via (the above stated) affidavit.

The above stated section states a citizen may commence any civil action in any court without being required to prepay fees before or after commencing suit. Appellant reads and interprets that language precisely the way it is written, however according to the staff attorney for the trial judge appealed from, the ability to proceed in forma pauperis is solely reserved for parental termination cases. This is a matter raising significant concern as it clearly appears to be a deviance from established, written procedure, and one that gives off the impression of it being a rogue and possibly isolated event and one that is an unfair, potentially unethical call made. As such, appellant raises his grievances to this high court for its further interpretation on the aggrieved matters at hand due to numerous occasions in the past couple of years, appellant has raised issues surrounding the constitutionality of demands, decisions, and rulings made by the Chancery Court of Lafayette County and in particular the trial judge appealed from.

Respectfully Submitted this 8th Day of February, 2022



Matthew Reardon
Pro-Se Appellant
117 CR 401

Oxford, MS 38655

matt@mattreardon.com

662-550-9752

2/8/2022

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From Matt Reardon <matt@mattreardon.com>
To "Samantha Weathersbee" <SWeathersbee@lafayettecoms.com>
Subject Re: Judge Whitwell's Denial of Pauper's Oath in Lafayette County Cause No. 2016-422
Date Mon, 07 Feb 2022 16:37:11 -0600

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All My Best,

Matt Reardon

Founder of Outlawed Productions

Producer & Creator of Riding With The Outlaw

662-550-9752

A MUST READ!! READ MY STORY HERE >

<https://ridingwiththeoutlaw.com/my-story/>

**See the latest court filings, articles, evidence and video releases
at RIDINGWITHTHEOUTLAW.COM**

"When Freedom is Outlawed, Only The Outlaws Will Be Free"

---- On Mon, 07 Feb 2022 15:33:17 -0600

SWeathersbee@lafayettecoms.com<SWeathersbee@lafayettecoms.com> wrote ----

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addressed in this matter, you will need to take that up with the appellate court.

Best,

Samantha D. Weathersbee, Esq.
Staff Attorney to Judge Robert Q. Whitwell
of the 18th Chancery Court District

300 N. Lamar Blvd., Suite 211
P.O. Box 49
Oxford, MS 38655
(P) 662-236-0233
(F) 662-234-6996

FOR ORDERS OF SETTING AND NOTICES OF HEARING, PLEASE CONSULT
OUR WEBSITE AT www.18thchanceryms.com and/or JENNIFER KINCAID
AT jkincaid@lafayettecoms.com.